

**BEFORE THE
OFFICE OF ADMINISTRATIVE HEARINGS AND THE
COMMISSION ON PROFESSIONAL COMPETENCE FOR THE
LEMON GROVE SCHOOL DISTRICT
STATE OF CALIFORNIA**

In the Matter of the Dismissal of:

KEVIN KEEFE, Respondent

OAH No. 2024100576

DECISION

This matter was heard before the Commission on Professional Competence (Commission) on February 24, 25, 26, 27, and 28, 2025, in Lemon Grove, California. The Commission was comprised of the following members: Meghan Wethers, Charles Mendoza, and Marion J. Vomhof, Administrative Law Judge (ALJ), Office of Administrative Hearings, State of California, who presided over the matter.

Jonathan A. Pearl, Attorney at Law, Dannis, Woliver, Kelley, represented Lemon Grove School District (LGSD or the district).

Jon Y. Vanderpool, Attorney at Law, Vanderpool Griffith LLP, represented respondent, Kevin Keefe, who was present throughout the hearing.

Oral and documentary evidence was received. The record remained open to allow the parties to submit written briefs and for the Commission to deliberate.

Thereafter, the briefs were filed and considered, and the Commission met to deliberate. On March 11, 2025, the matter was submitted for decision.

SUMMARY

The district seeks respondent's dismissal based on its assertions that respondent engaged in immoral conduct, including egregious misconduct, and unprofessional conduct, was evidently unfit to teach, and persistently violated board regulations relating to his employment, from October 2022 through September 2023, while a teacher in the LGSD. After giving due consideration to the evidence of record and the arguments of the parties, the Commission finds that the district did not meet its burden of proof that cause exists to dismiss respondent on any of these grounds, and the statement of charges is dismissed. The district's decision to suspend him without pay pending his dismissal is reversed. The district shall pay respondent his backpay, benefits, and interest, from the time he was suspended without pay until the date of this decision.

PROTECTIVE ORDER

A protective order has been issued sealing the exhibits identified in that order. It is not practical to redact those documents. This sealing order governs the release of the documents to the public. A reviewing court, parties to this matter, their attorneys, the California Commission on Teacher Credentialing, its attorneys, or designee, and a government agency decision maker or designee under Government Code section 11517, may review the documents subject to this order, provided that such documents are protected from release to the public.

FACTUAL FINDINGS

Jurisdictional Matters

1. Respondent was a permanent certificated employee of the district, teaching physical education (PE) at Lemon Grove Academy Middle (LGAM) for the 2022-2023 school year and teaching PE at Vista La Mesa Academy (VLMA) for the 2023-2024 school year.

2. On February 28, 2023, district received a complaint filed by parent Ms. R, alleging respondent engaged in sexual harassment towards female students, including her daughter GW, and unprofessional conduct towards Ms. R.

3. On March 15, 2023, the district placed respondent on paid administrative leave and conducted an investigation into the allegations.

4. On August 15, 2023, the district issued a Notice of Unprofessional Conduct and Unsatisfactory Performance (NUCUP) to respondent, stating that if respondent's conduct did not improve, formal disciplinary action may be recommended. Respondent was reassigned to VLMA for the 2023-2024 school year.

5. On September 8, 2023, the district received a second complaint filed by student KO and her mother, Ms. O, alleging that respondent had an erection during class. Respondent was placed on paid administrative leave on September 8, 2023, while the district conducted its investigation.

6. On September 11, 2024, respondent was notified of the board's Intent to Dismiss and immediately suspend him without pay. The notice included a Statement of Charges and the applicable laws and district policies respondent was alleged to have

violated. The charges further alleged respondent was being dismissed pursuant to Education Code section 44932, subdivisions (a)(1), immoral conduct, (a)(2), unprofessional conduct, (a)(6), evident unfitness for service, and (a)(8), persistent violation or refusal to obey regulations and district policies. Specific allegations are listed and addressed later in this decision.

7. On September 11, 2024, respondent was served with the board's Resolution of Intent to Dismiss and for Immediate Unpaid Suspension. Respondent was notified of his right to request a hearing.

8. On September 16, 2024, respondent requested a hearing and this hearing followed.

MIRS Motion

9. On October 2, 2024, in response to being placed on unpaid leave, respondent filed a Motion for Immediate Reversal of Suspension (MIRS Motion) at the Office of Administrative Hearings (OAH). OAH issued an Order setting the matter for oral argument and establishing a briefing schedule. The district opposed the motion, and respondent filed a reply to the district's opposition.

10. Education Code section 44939, subdivision (b), permits a school district to immediately suspend a permanent employee of the school district who has been charged with immoral conduct. Education Code section 44939, subdivision (c)(1), permits the employee to file a MIRS motion. The administrative law judge's review of the suspended employee's motion is "limited to a determination as to whether the facts as alleged in the statement of charges, if true, are sufficient to constitute a basis for immediate suspension under this section."

11. On November 1, 2024, after considering the pleadings, the written submissions, and oral argument, and having researched the issues, the administrative law judge hearing the MIRS motion determined the district had alleged facts which, if true, were sufficient to constitute a basis for immediate suspension under Education Code section 44939, subdivision (b), and denied the motion.

12. In a MIRS proceeding, unlike in this hearing, the underlying evidence on which the district relies is not presented nor considered; the Order issued following a MIRS motion is based solely on the pleadings. This is unlike in the hearing where the Commission considers the evidence at issue. Thus, the ruling on a MIRS motion is irrelevant for deciding discipline and is not binding on the Commission, although it can be used for determining back pay should the Commission vote to reinstate the employee.

Motion in Limine and Other Motions

13. The parties filed motions in limine and were permitted to orally argue their positions at the start of the hearing. The district filed three motions in limine and respondent filed oppositions thereto; respondent filed one motion in limine. The district filed other motions, which were each opposed by respondent. The rulings on all the motions in limine and other motions were made on the record.

Evidence Introduced at Hearing

14. Several witnesses testified on behalf of the district, and numerous documents were introduced. The following facts are based on that evidence.

DISTRICT'S INVESTIGATION

15. Tomas Chavez, Ed.D., has been the Executive Director of Human Resources at LGSD since August 2021. Vanessa Ruiz, Ed.D., was assistant principal at LGAM from 2020 to 2022. In November 2022, she became interim principal, and principal in 2023.

16. In October 2022, Dr. Chavez was notified by then principal Tamara Muhammad that female students had stated they felt uncomfortable around respondent. Dr. Chavez and Dr. Ruiz began an investigation.

17. At Dr. Chavez's request, Heidi Graver, a VLMA social worker, interviewed three female students, EM, DF, and KK, and forwarded her written notes from those interviews to Dr. Chavez. Student EM testified at hearing; students DF and KK did not testify at hearing. DF and KK's statements did not overcome any hearsay objections, and did not supplement or explain other evidence, and cannot be considered. Respondent denied all allegations made. Accordingly, those allegations cannot be established and are dismissed.

18. During the interview, EM stated she is in the seventh grade. She said that her PE teacher, respondent, "looks at girls' butts." He said, "Girls, you can't call yourselves ugly, you are all pretty." As she bent over to tie her shoes, a friend said respondent was looking at her butt. These incidents made her feel uncomfortable. She had an "F" in PE "because I hate [respondent]," but she added, "[O]ther than what I just told you he is a pretty good coach." In an October 25, 2022, written statement, EM wrote that on the previous day, "[Respondent's] private was pointing up . . . he was bricked up" and this made her uncomfortable. Of note, EM said nothing about this incident when she spoke with Ms. Graver less than two months later.

19. Ms. Graver testified that prior to the interviews, she had heard “some rambling” about respondent from another social worker; she did not provide additional information. Ms. Graver said that EM had “home life struggles.” She had talked to EM four or five times in the past when EM had gotten into trouble.

20. After a complaint was filed with the district on February 28, 2023, Dr. Chavez and Dr. Ruiz interviewed several students, including GW. GW testified at hearing, but none of the other students testified, their statements did not overcome any hearsay objections and cannot be considered. GW’s interview with Dr. Chavez and Dr. Ruiz is referenced with GW’s testimony later in this decision.

21. Lucia Washburn conducted a Title IX investigation which she completed in March 2024. She interviewed several witnesses, many of whom did not testify, and their statements did not overcome any hearsay objections, so no findings can be made thereon. The statements of witnesses who did testify were consistent with their testimony.

ALLEGATIONS THAT CANNOT BE SUSTAINED

22. Some of the allegations in paragraph 9a involved statements made by students DF and KK who did not testify at hearing. As noted above, they cannot be considered, and the charges pertaining to DF and KK are dismissed.

DISTRICT’S OTHER ALLEGATIONS

23. The district alleged that during the 2022-2023 and 2023-2024 school years, respondent engaged in pervasive, persistent, hostile, immoral, and unwanted conduct of a sexual nature with multiple female students, creating a hostile educational environment. These allegations were described in paragraph 9a through 9c of the Statement of Charges.

EVIDENCE RE: ALLEGATIONS – PARAGRAPH 9A OF STATEMENT OF CHARGES

24. Allegations: Respondent wore inappropriate clothes revealing the contours of his genitals, and this led students to believe that respondent had an erection during class; a witness confirmed respondent wore “dick shorts” that revealed the contour of his genitals and that he had been previously warned about wearing “dick shorts”; at least one student was assigned to another PE class during the 2022-2023 school year and respondent was placed on administrative leave during the 2023-2024 school year for the same issue.

25. Student AM stated that once in eighth grade she saw the contour of respondent’s penis and it was bricked up. This made her feel uncomfortable so she did not tell any adults. She stopped going to his class. Of note, “bricked up” is slang for having an erection.

26. Student GW testified that respondent was bricked up in class on more than one occasion. She said, “The front of his pants were poking out.” She does not remember when or how many times this happened. This made her feel uncomfortable and she thought this was not appropriate. GW transferred out of respondent’s class at the request of her mother.

27. EM testified at hearing that she could not recall the first time that respondent was bricked up, but she said it was not unusual and she could visibly see through his shorts. In a written statement EM prepared on October 25, 2022, she wrote that in PE the previous day “[respondent’s] private was pointing up . . . he was bricked up” and this made her uncomfortable. When EM was interviewed by Ms. Graver on December 15, 2022, EM said nothing about respondent being bricked up. EM said she transferred out of respondent’s class “because he was a weirdo.”

28. Ms. Carr testified that she saw respondent briefly on campus each day. She observed "an obvious bulge," which she saw "more than five times but less than 50 times" during the 2021-2022 and 2022-2023 school years. Of note, the allegations did not include the 2021-2022 school year.

29. Alison Patenaude, PE teacher at LGAM, testified that on one occasion, more than ten years ago, she referred to the shorts respondent was wearing as "dick shorts," and she told him not to wear these again. Ms. Patenaude said this was one conversation and said she did not "confront" respondent as Ms. Washburn reported from their interview, but rather "it was said in more of a joking manner, like, hey, maybe don't wear those shorts," telling respondent not to wear those shorts again. He did not wear the shorts again. Ms. Washburn reported that Ms. Patenaude said that respondent appeared to be well-endowed; Ms. Patenaude did not recall saying this.

30. Respondent denied that he wore shorts "that showed the outline of his genitals." He provided photos of various shorts that he wore to class. He stated that on Monday and Friday he wore cargo shorts because he "was not moving around" in class. The remainder of the week the students were moving around doing drills and skills or game playing so he wore basketball shorts. Before the directive, he usually wore boxer briefs. When the directive was issued, respondent complied with the district request that he change his attire and began wearing two sets of underwear to prevent students from seeing his genitals. Respondent does not recall what year the conversation with Ms. Patenaude took place, but it was at least 11 to 14 years ago. This was a one-time comment. He never wore those shorts to work again. There was no evidence of any warning to respondent prior to this conversation with Ms. Patenaude, that he should not be wearing "dick shorts."

31. Bonita Roache testified that, as a locker room attendant, she worked with respondent "a couple times each day." Respondent wore T-shirts and "cargo or PE" shorts to class; he did not wear tight shorts.

32. Duane Campbell, a fellow teacher at LGAM, testified that respondent wore basketball shorts at school. He would not consider respondent's shorts to be tight fitting. He saw no bulge. He thought the shorts were "way too baggy."

33. Joseph Hernandez, a PE teacher at LGAM for 29 years and friend of respondent, testified that respondent wears the same clothes as Mr. Hernandez, a T-shirt and shorts. He has never seen respondent "bricked up." He has never heard anything about "dick shorts."

EVIDENCE RE: ALLEGATIONS – PARAGRAPH 9B OF STATEMENT OF CHARGES

34. Allegations. EM specifically reported that when she was bending over to tie her shoe, another student told her to tie her shoe somewhere else because respondent was looking at her butt.

35. EM testified that when she was bending over to tie her shoe, another student told her to tie her shoe somewhere else because respondent was looking at her butt. EM did not say that she personally observed respondent looking at her butt and the other student was not identified.

36. Respondent denied staring at EM's, or any student's butt.

EVIDENCE RE: ALLEGATIONS – PARAGRAPH 9C OF STATEMENT OF CHARGES

37. Allegations: Respondent complimented female students by stating, "Nice form ladies"; this was an inappropriate comment and is something respondent repeatedly said to female students when they are working out. EM reported that

respondent said to his class, "Girls you can't call yourselves ugly you are all pretty," and respondent did not make similar remarks to male students in his class.

38. Respondent confirmed that he has made the comment "Nice form" to students. He observes and comments on form for all students, this is no different for boys or girls. He would not be doing his job if he was not looking at students' form. He explained that student safety is "number one." Ensuring proper form requires observing or looking at students. He does not look at butts and breasts. He is not doing this because he wants to check out their body parts.

39. Ms. Patenaude testified that she, too, comments to her students about whether their form is good. PE teachers teach proper form in throwing a ball, running, stretching and weightlifting, to prevent injury. She said "we" use the California Standards for teaching PE and proper technique is a critical piece of it. This requires that instructors watch the students' form to make sure the exercise or stretch is done correctly.

40. Mr. Hernandez testified that each PE class has a scheduled daily activity including weights, team sports, and a cardio run. Using weights requires that students lift some weights above their head and requires lots of reps. Mr. Hernandez demonstrates and ensures students are using the proper form. For example, when females are doing the military press, he watches from the front and from the back to make sure the elbow is even with the shoulder. He said students "know I am looking for elbows," so he may tap a student's elbow. He monitors both male and females. He has never had anyone say, "Stop looking at me." He monitors students' form when they are running. He tells them that biomechanically, "they should run like blades." It is important to focus on where your arms are when you run. Mr. Hernandez said, "I walk

in and out, watching them. I am going to stare at you to make sure you are doing what you should do." He is "always looking" at his students.

41. Student AM said that respondent said, "Nice form" when he "wanted backs to be flat during pushups."

42. Regarding the statement "Girls you can't call yourself ugly you are all pretty," respondent testified that each year students take their fall picture. After 20 years, he got tired of 100 percent of the girls waiting by the machine to see their photo, and always saying they hated it. In contrast, boys always said, "Looking good." Respondent told the girls that "if you pull out that photo you can't say you are ugly."

43. In her interview with Ms. Graver, EM said that respondent did not make similar comments to boys. However, at hearing, she testified that she could not say for certain that he did not make similar remarks to male students.

TESTIMONY OF CHERYL CARR

44. Ms. Carr said she is occasionally in touch with Ms. R. Ms. Carr spoke with Ms. Muhammad the morning of Ms. Carr's testimony. As early as a December 13, 2022, board meeting, Ms. R and her daughters opposed Ms. Muhammad's dismissal. Ms. Carr testified that she attended the board meeting "because I was 'pissed' that Tamera [Ms. Muhammad] was being dismissed." Other attendees "were mad at Dr. Chavez and Dr. Ruiz," because they "felt they were covering up for respondent." Ms. Carr was asked about her relationship with Ms. R. She said, "We've talked and are friendly acquaintances."

TESTIMONY OF DR. CHAVEZ

45. Dr. Chavez testified that in spring 2023 he interviewed SM, and she confirmed that respondent stood behind her and wrapped his arms around her to demonstrate how to hold the bat in wiffle ball, and she felt uncomfortable. GW confirmed that she witnessed the incident. Dr. Chavez said that a teacher never touches a student, and there were other options for respondent to demonstrate how to hold the bat. He interviewed GW regarding her mother's complaint. GW shared that she was embarrassed by him walking into her and she felt uncomfortable when he gave her a "side hug" and said, "I'm sorry [GW]." GW said she thought this was an accident but after she told her mother two months later, she then thought perhaps it was intentional. Dr. Chavez believed this was an accident. Based on GW's statements, he believes that the incident occurred in the fall of 2022, but it was not brought to the school's attention until 2023.

46. Dr. Chavez reviewed Ms. Graver's notes and EM's written statement and considered these in his report. He prepared and provided respondent with a Notice of Unprofessional Conduct and Unsatisfactory Performance, where he stated that respondent should wear appropriate clothing so that students could not see his genitals at any time. He met with KO after her September 8, 2023, written allegation. KO did not testify and therefore her allegation is not considered.

47. Regarding Ms. Muhammad, Dr. Chavez put her on paid leave, conducted a private investigation before a settlement was reached. No information was provided as to the reason for the investigation and her dismissal. There was loud opposition at a December 13, 2022, board meeting, and board meetings thereafter. In a public comment period on December 13, 2022, GW and her twin sister both spoke in favor of Ms. Muhammad, GW said that having Ms. Muhammad as principal made her feel

“more comfortable at school. There were at least two more board meetings where there was protest regarding Ms. Muhammad leaving. At a September 2023 board meetings, a speaker accused respondent of putting his genitals in students’ faces, and in October 2023, the speaker said that the district should not be hiring people with pedophile behavior.

48. Dr. Chavez stated that “community uproar did not affect” his decisions. The school told respondent not to wear these shorts, not to leer or look at breasts or butts. He believed the students to be credible. Dr. Chavez did not think that respondent was forthcoming. He said he agreed with Ms. Washburn that there were serious claims that respondent did not refute, but Dr. Chavez did not specify.

TESTIMONY OF YVONNE LEON

49. Ms. Leon became principal at VLMA in July 2023. She was aware that respondent had been reassigned to VLMA. She met with KO and her mother regarding KO’s behavior.. KO missed many PE classes during the first three weeks of the school year when respondent was her PE teacher, but she still missed frequently after he was gone. Ms. Leon said students at her school had heard about respondent’s issues at LGAM. Dr. Ruiz testimony was credible.

TESTIMONY OF DR. VANESSA RUIZ

50. Dr. Ruiz is principal at LGAM. In the 2022-2023 school year, three students wrote statements saying they felt uncomfortable with respondent. Ms. R made an informal allegation that respondent “sat on her daughter’s face.” A few weeks later, Ms. R, GW, respondent, and Dr. Ruiz met during parent conferences. Ms. R relayed that respondent sat on GW’s face, GW corrected her mom and stated, “Mom, that is not what happened.” Respondent asked Ms. R if she knew Ms. Muhammad. Dr.

Ruiz did not know why respondent asked the question or if there was more to this because she knew Ms. Muhammad left under bad circumstances.

51. After the meeting, Dr. Ruiz spoke with respondent and he could not recall the incident with GW. Dr. Ruiz did not think this was surprising due to the passage of time. Ms. R contacted law enforcement, and an officer came to the school and spoke with Dr. Ruiz and then principal Vinson. The officer asked if there was anything in respondent's background that was cause for concern, and Dr. Ruiz stated that there was not. The officer left and he did not get in touch with them. Thereafter, Ms. R. was present at school every day for at least half a day. She stated that she was volunteering at the school.

52. While she was a teacher, Dr. Ruiz heard compliments about respondent. Students enjoyed being in his class. She did not get reports of any issues until she became assistant principal. She sent statements of three girls to then principal Muhammad. Complaints are all taken seriously and investigated. Dr. Ruiz characterized Ms. Muhammad's departure as "a lot of turmoil." Dr. Ruiz watched board meetings online. She recalled Ms. R alleging sexual harassment at the school, that a student was victimized and touched, and that Dr. Ruiz covered up for respondent. Dr. Ruiz did not know why Ms. R's anger about Ms. Muhammad's dismissal was directed to respondent.

53. Dr. Ruiz said that Ms. R's conduct did not impact the investigation as "we often had this," and the investigation continued. She believes the incident with GW happened, that she felt uncomfortable, was embarrassed, and told her mom. Dr. Ruiz does not believe this was sexual in nature. She does not know why Ms. R suddenly wanted to move GW out of respondent's class.

54. In her interview with Dr. Chavez, Dr. Ruiz said that at the parent conference, she could tell that respondent was nervous and it seemed to her that he was being defensive and not listening to Ms. R, and she could understand why Ms. R might think that he was being disrespectful. In her interview with Ms. Washburn, Dr. Ruiz reported that after filing her complaint, Ms. R was hostile and made rude comments. She stopped dealing directly with Dr. Ruiz.

ADDITIONAL TESTIMONY OF STUDENT EM

55. When students ran outside on the black top, respondent ran behind and stared at the students. EM felt this was weird and inappropriate around young kids. She could not say directly where respondent was staring "but he had [sun]glasses on and was looking in one direction." She was asked what part of the body he was staring at, and she said, "I don't know because I wasn't watching exactly." EM said she hates respondent but added that "he is a good coach." She saw social media posts with rumors regarding respondent. EM did not observe the incident where respondent backed into GW, but she said that after the incident, GW's sister was screaming and GW was crying. When she was asked again, EM acknowledged that GW's sister "was not screaming but she talked about it," and EM said, "I don't know if GW was actually crying, because I didn't see her until the next day."

ADDITIONAL TESTIMONY OF STUDENT GW

56. Respondent was GW's PE teacher in seventh grade until she transferred to Mr. Hernandez's class. Classes started on the blacktop outside where respondent took attendance by each student standing on his or her number. The class began by doing stretches. Each week different students led stretching, where they would stand or sit in front of the class, facing the rest of the students. Respondent was off to the side. He was dressed in shorts and running shoes, and he wore dark glasses.

57. When respondent was showing SM how to hold the bat for wiffle ball, GW observed that he stood behind SM and put his arms around her and touched her hands and arms. SM looked uncomfortable and GW felt a little uncomfortable.

58. A few months ago when she was stretch leader, "[Respondent] backed up on my face." His butt made contact with her face. He gave her a side hug and apologized. She was embarrassed and felt uncomfortable. At the time she thought this was an accident, but after she talked to her mother a few months later, she realized "that it could have been done on purpose." GW did not believe respondent was "creepy and a pervert" until she was in his class, and his pants were poking out, the incidents of the wiffle ball and his butt on her face. Respondent never touched her other than the side hug. She acknowledged that she did not tell adults about respondent being "bricked up" but she believes that her friends did.

59. GW said it was "a pretty big incident because of how it made me feel." When was asked why she did not tell her mom at the time, GW did not have an answer. GW then said she did not recall her mom's reaction when she (GW) did tell her.

60. GW, her mom, and her twin sister testified at board meetings, beginning in December 2022, in support of Ms. Muhammad who was the subject of a dismissal by the district. Her mom did not ask her to speak, GW wanted to speak. GW said that having Ms. Muhammad as principal made her "feel more comfortable," and after Ms. Muhammad left, "school did not feel safe."

ADDITIONAL TESTIMONY OF STUDENT AM

61. AM is currently in the 10th grade. She attended LGAM for seventh and eighth grade. Respondent was her PE teacher for all of eighth grade. She saw

respondent staring at the girls when they were outside doing squats and pushups. Respondent was wearing sunglasses and his head was toward the girls. AM said she was “assuming he was staring.” She then said she does not know if he was staring as she did not see his eyes because he was wearing sunglasses.

AM said respondent wore shorts and T-shirts to class. When she was asked if she could recall anything more specific about his shorts, she responded, “Why would I be looking at them?” She said one time in eighth grade she saw the contour of respondent’s penis and it was bricked up. This made her feel uncomfortable. She stopped going to class. She did not tell any adults on campus because she was uncomfortable.

TESTIMONY OF MARIANNA VINSON

62. As the final decision maker following the Title IX Investigation, Ms. Vinson made the decision that respondent should be dismissed. She said he had been given a second chance when he was assigned to VLMA for the 2023-2024 school year, but his inappropriate and unprofessional conduct continued.

63. Ms. Vinson stated that she was pleased with the totality of Ms. Washburn’s investigation, and she appreciated the comprehensive data collected, the interviews done, and Dr. Chavez’s investigation. She was “deeply impacted and disappointed with the environment that [respondent] created for children,” where children felt unsafe and uncomfortable, and that this went on for years. When asked about the significance of rumors that were rampant throughout the schools and also visible on social media, Ms. Vinson dismissed the notion and compared rumors to students “sharing” information. This analogy was not credible. A student honestly sharing a personal experience, positive or negative, is not equivalent to a student

repeating something he or she may have heard from another individual or a group of “eighth grade girls” or something observed on social media.

64. Ms. Vinson believes that at some point respondent was sorry that he had this impact on students, but she believed this was not sufficient because he blamed the children and he blamed Ms. R, who Ms. Vinson described only as a passionate parent who deeply wanted to protect her child.

65. She said her final determination was “100 percent based” on respondent’s conduct and the totality of the evidence over the three years and that he has not adapted or changed his behavior during this time.

Respondent’s Evidence

66. The following is a summary of respondent’s evidence including witness testimony and supporting evidence.

TESTIMONY OF BONITA ROACHE

67. Ms. Roache is a PE locker room aide at LGAM. She is with girls in the locker room at the start and end of each PE period, otherwise she is working with the teacher and students. She heard respondent interact with male and female students and “guide them on how to do things.” She never saw him say or do anything inappropriate with male or female students. She never heard rumors or criticism about anything he did.

TESTIMONY OF DUANE CAMPBELL

68. Duane Campbell teaches math/pre-algebra at LGSD. He has known respondent over the years and described their relationship as friendly. In late fall 2022,

there was a transition from Ms. Muhammad to Dr. Ruiz as principal of LGAM. Prior to this time, he had only heard students say that respondent's class was difficult. A female student told Mr. Campbell that she had heard a rumor about respondent but had not personally seen anything. Mr. Campbell told her this was gossip. Mr. Campbell talked to Ms. Muhammad when Ms. R, the mother of GW and her twin sister, was "always at school." He attended a school board meeting where Ms. R made all kinds of accusations against respondent. Mr. Campbell personally "investigated" her accusations by talking to two aides and maybe a student who he trusts, and he asked people at the board meeting, and no one seemed to know anything. At a subsequent board meeting, Ms. R was "yelling again." She made allegations of respondent staring at girls, which Mr. Campbell said was not true. He said, "She was overly angry and taking something out on [respondent]."

TESTIMONY OF DESTINY BAILEY

69. Ms. Bailey was the girls' locker room attendant at VLMA. She was always present when respondent was with the girls. She never saw him touch students inappropriately, she had no concerns about his conduct around her or any students, and no student came to her with any concerns about respondent. Ms. Bailey said that "the rumors started" after respondent left.

TESTIMONY OF RESPONDENT

70. Respondent attended Palomar College and then College of the Southwest in Hobbs, New Mexico, where he obtained his undergraduate degree, a master's degree in 2011, and a single subject physical education credential. He taught in Poway and in 2000 he began teaching for the district. He taught for 12 years at Palm Middle School and LGAM for about 11 years. He was transferred to VLMA, where he worked for eight or nine weeks. During his teaching career, respondent taught under

nine or ten principals. Respondent has been married for 20 years. He and his wife have three daughters, ages 27, 19, and 20. Respondent has been in unpaid status since his suspension and is responsible for his own medical insurance.

71. During his teaching career, respondent taught under nine or ten principals, who were his direct supervisors. Most recently he taught under principals Tamera Mohammed, Yvonne Leon, and Veronica Ruiz. Respondent received performance reviews on a regular schedule. For the first two years this was on an annual basis, with two announced and two unannounced reviews, and then on a two-year schedule thereafter. Each review has metrics and he has never received less than "meets expectations." He received a review for "approaching" standards from Ms. Mohammad and Ms. Hayslett; in all other performance reviews, he "reached" standards. He has tried to improve each year.

72. Respondent worked under Ms. Muhammad for a little over two years. She reported a student complaint and he was placed on paid leave in 2021. One of his students continually showed up late and "she seemed down," so he reported her to a counselor. The student said that during one pickle ball game he told her not to be lazy and move around. He was then placed on paid leave for a week. He does not recall but this discipline was probably written. He had never received a warning of any kind or a reprimand before this incident.

73. Respondent received a copy of Dr. Chavez's July 7, 2023, Investigative Report. He was not interviewed by Dr. Chavez. In his written response regarding the report, respondent wrote that he disagreed with the report's findings sustaining some of the allegations against him. He explained that he grades students on a wide variety of activities consistent with California State PE standards, which includes evaluating students' sit up and push up form, stretching form and ability, and body movement

techniques in throwing, striking and hitting. Grading also includes assessing the students' willingness to progress and improve in each of these areas. In his 24 years of teaching, he has taught roughly 6,000 students, not including 20 years teaching district after-school sports.

74. The five female students who provided written statements constitute about 1.25 percent of his total PE students during the fall 2022 semester. These statements mostly accuse him of looking or "leering" at female students' bodies. Per his PE syllabi, students are graded on their form, e.g., how they run, stretch and exhibit other sports or physical activities, requiring that he visually observe male and female students' form and technique.

75. EM is the student who claimed respondent had an "erection" in class. Respondent had a great teacher/student relationship with her, she would "high five" him in the hallway, and she talked to him about her after-school basketball games. Allegations were provably false rumors because he typically wears baggy basketball or cargo shorts, the students were not asked about what pants he was wearing, and no adult staff member corroborated this claim. This student was involved in multiple altercations on campus, was suspended from school, and was caught in numerous lies to teachers which led to phone calls to her mother that confirmed she was not telling the truth.

76. Respondent described GW as an "all around great kid, awesome athlete," and he had "zero" problems with her in class. GW's mom, Ms. R, claimed respondent sat on GW's face, even though during their meeting at the parent conference, GW said, "Mom, that is not what I told you." Respondent tripped while walking backwards. Her mom then admitted that she is a helicopter parent and that her daughter loves his class and thinks he's a great coach, and she doesn't want this to ruin their

teacher/student relationship. He confirmed that it would not change the relationship and he enjoyed having her in class. The next day everything changed. Ms. R sent respondent an email stating that she was moving her daughter from his class. From that day forward, Ms. R came to school each day and followed her daughter to all her first period classes; even though this student was an outstanding academic student with no behavioral problems. Ms. R would hover over GW evidencing this student was and still is being manipulated by her helicopter-parent mom.

77. Mr. Chavez's report contained allegations of leering or staring at students. Respondent explained that the number one thing is student safety. This requires proper form which requires observing or looking at students. He has five classes of students each day, with 35 to 50 students in each class. Twice a day there are two adults present, plus multiple aides throughout the day. Regarding his comments of "nice form ladies," he would not be doing his job if he was not looking at students' form. He observes and comments on form for all students, this is no different for boys or girls. There is a difference between watching and leering. Leering is defined as a look that is suggestive of lascivious or prurient interest. He does not look at butts and breasts. He is not doing this because he wants to check out their body parts.

78. Respondent has taught about 6,000 students over his career. Former students have kept in touch with him, most recently former students have reached out on Facebook. He has had students tell him he was their favorite teacher, and a student said she became a teacher because of him. Respondent has received comments from colleagues about how well he does his job and his ability to get students to move when they don't think they have a possibility of moving.

79. When Dr. Chavez was principal at Mt. Vernon Elementary, respondent spoke at graduation and Dr. Chavez said, "Nice job. I can tell you have a good rapport

with the kids.” Respondent has received numerous cards or notes from students over the years for “Teacher Appreciation Day” or in response to “Who Makes a Difference in your Life.” He has kept some of these notes at his home and some were in his office at school.

80. Respondent provided numerous letters and notes from former students, thanking him for something he said or did for them that changed or impacted their lives. This is the same thing his eighth-grade teacher did for him. He said, “These notes are why I teach.” He also received emails with positive feedback from parents.

81. Respondent does other community activities with students such as an annual carnival to raise money for cancer research where he volunteered for seven or eight years. Ms. Patenaude talked of Family Fun Fitness Friday. Respondent started this program about 15 years ago because “I wanted to show the community our program and wanted to show the parents the students’ progress.” He never thought parents would come and run, but they did. He wanted to develop the program first and get the students “where we wanted them to be.” Starting the last Friday of the second semester, students could run before school. They ran their weekly mile before school so they did not have to run it during school, leaving extra time during PE class.

82. Respondent received various awards over the years, including:

- Palm Middle School Teacher of the Year for 2007-2008
- District Teacher of the Year for 2011-2012
- Honorary Service Award from California Parent Teacher Association (PTA)
“For recognition of outstanding service to children and youth.” –
February 11, 2015

- The Most Inspiring (Motivational) Seventh and Eighth Grade Teacher – March 2019. Respondent was selected by student vote as one of two recipients of this award.

83. AM said respondent held out his hand to her. He was not shaming her. He had motivated her before. He tried to pair up students who are motivated with students who are not. He said this must have been one of those times when she was moving slow and he offered to help her out.

84. If a verbal cue did not work, he would ask a student if he “could adjust,” and then he would touch an elbow. He would ask a student if they wanted help with running and he never tapped a student without asking first. Regarding SM, he said he was standing on the side of her and not behind her or grabbing her. He said, “I probably touched her.” He never licked his lips in a prurient way.

85. Regarding GW, when he was first asked by Dr. Ruiz, he did not recall the tripping incident. He said he tripped on GW, and he may have said, “I thought you were my chair.” No one said she or anyone was embarrassed. When Dr. Ruiz said she had parent in the office who said he sat on her daughter’s face, he was surprised. Regarding his giving a side hug to GW, he said that based on the conversation with GW and Dr. Ruiz, GW said he touched her shoulder. On the day of the parent-teacher conference, Ms. R was walking toward his table, and Dr. Ruiz said, “Let’s all go outside.” Ms. R asked about him sitting on GW’s face. Respondent asked if she had a relationship with Ms. Muhammad. Ms. R said she and Ms. Muhammad “had an acquaintance.” Then they talked about the incident. When Ms. R said respondent sat on GW’s face, GW said, “Mom, that is not what happened, he was walking backwards and said he was sorry.” Ms. R said she did not want this incident to ruin GW and respondent’s relationship.

86. The next morning Ms. R said she was taking GW out of his class. Ms. R began walking her daughters to class every day. Soon thereafter respondent was placed on paid leave by the district. At some point, Dr. Chavez said that he had concluded the investigation and “found you did not do this on purpose.” Dr. Chavez said the investigation was over and he was putting respondent back to work. Respondent returned to work, and received an email stating that he was being placed back on leave the next day. Respondent went to see Dr. Chavez, who said, “I wasn’t going to put you back on leave but Ms. R threatened to go to the police.”

87. On August 15, 2023, respondent received the Notice of Unprofessional Conduct and Unprofessional Performance. In his response to Dr. Chavez, he confirmed his receipt of the Notice and that some in some respects the Notice supplemented his response to the Investigative Report. But he stated, “I’m disappointed not to see any aspects of my Aug 5th writing cited in the August 15 Notice or even its submittal referenced. Instead, the [Notice] appears to perpetuate slanted, incomplete and mostly inaccurate allegations . . . the more recent allegations this past spring 2023 are levied by less-than-credible complainants.” He concluded by acknowledging that he received the Board Policies regarding Philosophy, Professional Standards, Positive School Climate, and prohibiting sexual harassment, as well as the 15 directives enumerated in the Notice. He wrote, “Respectfully, my words and actions to date have complied with these policies and directives. I will continue to strive to do so and welcome you, the Superintendent, any Board member or other staff member observing how I conduct my PE classes at any time.” He was reassigned to VLMA and was there for nine weeks. He was never sent to teach elementary school children. Ms. Vinson observed him twice unannounced. After he received the notice of unprofessional conduct, he continued to follow the district’s directives on proper clothing for work, and how to interact with

students and adults. It was recommended that he wear cycling shorts, so he complied, and he doubled up on underwear.

88. Several months after he was placed on leave in September 2023, he was interviewed by Ms. Washburn. He was honest with her in the interview. When he received Ms. Washburn's report, he thought it was good, both credible and noncredible determinations.

89. When he received the March 22, 2024, Title IX evidence review, he responded, in part:

Overall, I agree with Ms. Washburn's findings on credibility and what occurred at school. I am grateful for my colleagues of nearly a quarter of a century who came to my defense and spoke positively about my character, my commitment to student well-being/safety, and my professionalism. Additionally, I am grateful my new colleagues who I only knew and worked with for 9 weeks spoke highly of my professionalism, character and commitment to our students I appreciate the investigator's assessment that parent L.R.'s allegations were inaccurate and inconsistent with the other evidence, and not credible.

[¶] . . . [¶]

To go with my 25 years of teaching middle school PE, I also coached high school and middle school after school sports; both male and coed sports from 1999-2020. At no time did

I have one student or parent have any concerns about my professionalism or character as a man or Coach.

One of the key goals of our district is to teach with rigor; and I do. I teach and treat my students as if they were my own. Some call it "tough love." Even though the majority of the kids enjoy a more consistent, structured PE environment that is both fun and tough at times, some kids take it as I am being mean. Once students get to know I am just a "big teddy bear" inside and I am expecting the best for them, they buy in and really love my class and appreciate the results they see in themselves both mentally and physically. The majority of the students who do initially hesitate are female students. Being a father of three girls that have surpassed seventh and eighth grade I understand why they might not want to come to PE daily and sweat, get dressed in and out of their school clothes and do PE daily. I am very aware of the dynamics of both male and female students that are going through so much change during this difficult age in their life.

The past 12 months have been the toughest year of my life for me personally, I have been slandered publicly, privately with meritless accusations that I will continue to fight for my innocence. My wife was publicly threatened at a board meeting by a friend of L.R's that has never met me or my spouse. These extremely hurtful, false accusations have not

only affected me, but my family, friends, former and current students, and through slanderous public.

[¶] . . . [¶]

I have given my heart, sweat and tears into the Lemon Grove School District for 24 years. I truly believe the only reason I am in this current situation is from one rogue parent, her friends, which then carried over to this school year at a new school with rumors and false allegations that also were deemed not credible. I'm hopeful that this saga is behind me and I will return to work.

90. Respondent said, "This ordeal has been a living hell. I didn't know there was so much evil in the world. I have always been someone who uplifted others. Now people have to lift me up." Respondent became emotional and choked up while offering this testimony. Respondent believes that he is fit to return to teaching.

ADDITIONAL CHARACTER TESTIMONY

91. Ms. Patenaude estimates she worked with respondent for more than 16 years. During this time, she saw him daily conducting his classes. Respondent was a positive mentor for her. When she and respondent were at Park Middle School, they started running a sports club where they facilitated a variety of after-school activities. On "Appreciation Day" respondent received the most notes from all the students. She never had a student come to her with an issue regarding respondent.

92. Mr. Hernandez and respondent have known each other and taught together for more than 20 years. They shared an office and are good friends. Mr.

Hernandez said that respondent motivates students and he is always positive. Mr. Hernandez and respondent both have daughters. Mr. Hernandez said, "We want to get the best out of their ability, our job is to motivate. If we find kids we can push to love a sport, they are more successful in high school."

93. Ms. Roache testified that she has "plenty of compliments" for respondent, including that he engages with students, he is respectful, and "he talks to students like they are humans."

STUDENT NOTES AND LETTERS TO RESPONDENT

94. Respondent provided 29 notes and letters from students, dated from 2004 through 2021, and the following is a sampling of those letters:

- It's been a good two years of having the best coach I could ask for help me better my health, confidence, and overall fitness, and I can't be more thankful.
- You were encouraging and understanding, and hard and strict all at the same time.
- Thank you for never giving up on me and pushing me beyond my limits of success.
- Thank you for helping me improve in my life. You are the teacher who has helped me the most.
- Thank you for always having my back and paying attention to my emotions and even supporting my family.

- You always believed in students, told them to never give up, and always helped students with problems if they needed you. If it wasn't for you I wouldn't be pushing myself through things I thought I couldn't do.

EVIDENCE REGARDING RUMORS

95. The role of rumors was significant. GW told Ms. Washburn that she had been warned by eighth grade girls not to go anywhere with respondent and that he was "weird and creepy." EM stated that there were "a lot of rumors" going around school about respondent. Her cousin, AM, told her about the rumors. EM saw posts on social media about respondent from kids who were older than her, and she read things on Instagram. She said, "Social media said don't get respondent because he was a pedophile. They said he's weird, don't get in his class." AM stated she had heard rumors about respondent. Dr. Chavez, Dr. Ruiz, Ms. Graver, Ms. Vinson, Ms. Leon, Mr. Hernandez, Mr. Campbell, and Ms. Bailey were all aware of rumors around VLMA and LGAM regarding respondent.

LEGAL CONCLUSIONS

Applicable Code Sections Regarding Dismissal Actions

1. A permanent employee may be dismissed for cause only after a dismissal hearing. (Ed. Code, §§ 44934 and 44944.)

2. Education Code section 44932 provides the grounds for dismissing a permanent employee: Subdivision (a)(6) authorizes dismissal for evident unfitness for service. Subdivision (a)(8) authorizes dismissal for persistent violation of or refusal to obey the school laws of the state or reasonable regulations prescribed for the

government of the public schools by the state board or by the governing board of the school district employing him or her. Subdivision (a)(2) authorizes dismissal for unprofessional conduct; and subdivision (a)(1) authorizes dismissal for immoral conduct.

3. Education Code section 44944 establishes the right to a hearing. It also sets forth the process for selecting the three-member Commission and the Commission's authority regarding its final decision.

4. Education Code section 44938 outlines the procedures the district's governing board must follow before acting on any charges brought against a permanent employee.

Burden and Standard of Proof

5. The "burden of proof" means the obligation of a party to convince the trier of fact that the existence of a fact sought to be proved is more probable than its nonexistence. (*Redevelopment Agency v. Norm's Slauson* (1985) 173 Cal.App.3d 1121, 1128.) The district has the burden of proof to establish cause to dismiss its employee.

6. The standard of proof in a teacher dismissal proceeding is a preponderance of the evidence. (*Gardner v. Commission on Professional Competence* (1985) 164 Cal.App.3d 1035, 1039-1040.) A preponderance of the evidence means that the evidence on one side of an issue outweighs, preponderates over, and is more than, the evidence on the other side of the issue, not necessarily in number of witnesses or quantity, but in the convincing effect the evidence has on those to whom it is addressed. In other words, the term refers to evidence that has more convincing force than that opposed to it. (*People ex rel. Brown v. Tri-Union Seafoods, LLC* (2009) 171 Cal.App.4th 1549, 1567.)

Applicable Board Policies and Regulations

7. Board Policy Nos. 0100, 4119.21, 5137, and 5145.7, Education Code sections 201, 220, 234-234.5, Title IX and Administrative Regulation (AR) Nos. 1312.1 and 1312.3, set forth the professional standards the board expects of its employees.

8. As noted, the board expects district employees to “maintain the highest ethical standards, behave professionally, follow district policies and regulations,” “exercise good judgment when interacting with students and other members of the school community,” and “engage in conduct that enhances the integrity of the district, advances the goals of the district’s educational programs, and contributes to a positive school climate.” The board further expects its employees to report suspected sexual harassment, and, once notified, the principal or compliance officer shall take the steps to investigate and address the allegation, as specified in AR No. 1312.3.

Relevant Judicial Authority

IMMORAL CONDUCT

9. The term “immoral” has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. The term “immoral conduct” has been defined to include conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare. “Immoral conduct” is not confined to sexual matters. It includes an inconsiderate attitude toward good order and the public welfare. It is sometimes synonymous with “dishonesty” or a high degree of unfairness. (*Board of Ed. of San*

Francisco Unified School Dist. v. Weiland (1960) 179 Cal.App.2d 808, 811, "noting that no other California cases had previously define the term "immoral conduct.")

10. "Immoral conduct" is conduct hostile to the welfare of the general public and is not confined to sexual matters. (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1466.)

11. Immoral conduct cannot be considered in the abstract. It must be considered in the context in which the Legislature considered it, as conduct which is hostile to the welfare of the general public; more specifically, conduct which is hostile to the welfare of the school community. In providing standards to guide school boards in placing restraints on conduct of teachers, the Legislature is concerned with the welfare of the school community. Its objective is the protection of students from corruption. This is a proper exercise of the power of a state to abridge personal liberty and to protect larger interests. But reasonableness must be the governing criterion. (*Morrison v. State Board of Education* (1969) 1 Cal.3d 214, 224.) The phrase "immoral conduct" within the meaning of the Education Code denotes immoral or unprofessional conduct or moral turpitude of the teacher that renders the teacher unfit to teach. (*Id.* at p. 225.)

12. There are certain professions which impose upon persons attached to them responsibilities and limitations on freedom of action, which do not exist in regard to other callings. Public officials such as judges, policemen, and schoolteachers fall into such a category. (*Board of Trustees v. Stubblefield* (1971) 16 Cal.App.3d 820, 824.)

13. "As between a teacher and his student, '(a)n important part of the education . . . is the instilling of a proper respect for authority and obedience to

necessary discipline. Lessons are learned from example as well as from precept.’
(Citation.) ‘A teacher . . . in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the [students] coming under [his] care and protection. . . . The teaching by example as well as precept, of obedience to properly constituted authority and discipline necessary to a well-ordered society, is an important part of education.’” (*Watson v. State Bd. of Education* (1971) 22 Cal.App.3d 559, 565.)

14. “The calling of an educator is so intimate, its duties so delicate, the things in which a teacher might prove unworthy or would fail are so numerous that they are incapable of enumeration in any legislative enactment. The educator’s ability to inspire children and to govern them, his power as an educator, and the character for which he stands are matters of major concern in an educator’s selection and retention. . . . An educator in the public school system is regarded by the public and pupils in the light of an exemplar, whose words and actions are likely to be followed by the students coming under his care and protection. (Citation.)” (*San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1463-64.)

15. The governing board of a district is entrusted with the conduct of the schools under its jurisdiction, their standards of education, and the moral, mental, and physical welfare of the pupils during school hours. An important part of the education of any child is the instilling of a proper respect for authority and obedience to necessary discipline. Lessons are learned from example as well as from precept. “Book learning” is only a phase of the important lessons a child should learn in a school. (*Palo Verde Unified School District of Riverside County v. Hensey* (1970) 9 Cal.App.3d 967, 970-71.)

16. Rejecting statutory terms, such as “immorality,” “unprofessional conduct,” or “moral turpitude” as overly broad to use as grounds for discipline of public school teachers, the court in *Morrison*, supra, created a seven-part test to assess whether a misbehaving teacher is fit to teach. (*Broney v. California Com. on Teacher Credentialing* (2010) 184 Cal.App.4th 462, 466.) “Because terms such as ‘immoral,’ ‘unprofessional,’ or ‘involving moral turpitude’ are too broad and amorphous to be used as a basis for the termination of a professional license, it must be shown the conduct in question indicates an unfitness to engage in the profession.” (*Id.* at pp. 473-74.)

17. Since the term “immoral conduct” is vague and broad, whether the conduct demonstrates an unfitness to teach must be measured against seven criteria set forth in *Morrison*, supra. (*Governing Board of ABC Unified School District v. Haar* (1994) 28 Cal.App.4th 369, 383.)

EVIDENT UNFITNESS FOR SERVICE

18. The applicable standard or determinative test in teacher dismissal cases is whether the person is fit to teach. “Fitness to teach” is a question of ultimate fact. (*Board of Education v. Commission on Professional Competence* (1980) 102 Cal.App.3d 555, 560-561.)

19. “Evident” is defined as “clear to the vision and understanding.” “Unfit” is defined as “not fit; not adapted to a purpose, unsuitable; incapable; incompetent; and physically or mentally unsound” and “unsuitable, incompetent and not adapted for a particular use or service.” (*Palo Verde Unified School District of Riverside County v. Hensey* (1970) 9 Cal.App.3d 967, 972.)

20. In *Woodland Joint Unified School Dist. v. Commission on Professional Competence* (1992) 2 Cal.App.4th 1429, the court noted the two parallel, yet contradictory, lines of cases regarding “unfit for service.” One line of cases equated that term with “unprofessional conduct” and the other line of cases distinguished the two definitions. In deciding that the latter line of cases was the correct way to evaluate “unfit to serve,” and complied with the rules of statutory construction. The *Woodland* court concluded that “unprofessional conduct” and “evident unfitness for service” do not mean precisely the same thing. Although conduct constituting “evident unfitness for service” will often constitute “unprofessional conduct,” the converse is not always true. Evident unfitness for service requires that unfitness for service be attributable to defect in temperament, which is not necessary for a finding of unprofessional conduct. Nevertheless, lower courts may not disregard the criteria for unfitness set out in *Morrison* where that court concluded that “unprofessional conduct” meant conduct showing a teacher was unfit to teach. These criteria must be analyzed to determine, as a threshold matter, whether the conduct indicates unfitness for service. If it does, the next step is to determine whether the “unfitness” is “evident”; i.e., whether the offensive conduct is caused by a defect in temperament. (*Id.* at pp.1442-1445.) A finding of “unfit to serve” can be made if the evidence, taken in the aggregate, shows that retaining the employee would pose a significant danger of psychological harm to students and fellow teachers. (*Id.* at p.1456.)

21. To establish a teacher is unfit to teach, *Morrison, supra*, requires a nexus between government employment and alleged employee misconduct stemming from the principle that “[n]o person can be denied government employment because of factors unconnected with the responsibilities of that employment.” (*San Diego Unified School District v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1463.)

22. "Unlike 'unprofessional conduct,' 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectation of the employing school district.'" (*San Diego Unified School District v. Commission on Professional Competence* (2013) 214 Cal.App.4th 1120, 1142-43.)

23. An employee's actions on a given day may suggest a lack of judgment and discretion or may be an isolated act precipitated by an unusual accumulation of pressure and stress. An absence of any other incidents in the employee's teaching career suggestive of lack of judgment or discretion can further distinguish the aberrant character of the act at issue. In such a case, a fact finder could reasonably conclude that the isolated incident of poor judgment was outweighed by years of demonstrated teaching competence, and that on balance the employee possessed the qualities of character necessary for teaching fitness. (*Board of Education v. Jack M.* (1977) 19 Cal. 3d 691, 696-701.)

24. The nexus between an employee's conduct and his fitness to teach is established when the conduct is detrimental to the mission and functions of the employer. Factors to consider are whether the acts demonstrate a serious lapse in good judgment, the teacher failed to recognize the seriousness of his misconduct, the teacher attempted to shift blame to parents and students who might access his posting, his principal had lost confidence in his ability to serve as a role model based upon the posting, or, most noteworthy, the teacher's testimony that he did not think his postings would have any impact on his ability to teach his students if any of them had viewed his post and that he did not view his posting as immoral. The conduct itself, together with the teacher's failure to accept responsibility or recognize the seriousness of it, given his position as a teacher and role model, demonstrates evident

unfitness to teach. (*San Diego Unified School Dist. v. Commission on Professional Competence* (2011) 194 Cal.App.4th 1454, 1465-66.)

25. One act does not alone demonstrate the unfitness of the teacher, but is simply one of the factors to be considered. (*Board of Education v. Commission on Professional Competence* (1980) 102 Cal. App.3d 555, 561-62.)

26. There must be a nexus between the teacher's conduct and his usefulness to the school district and only when so construed can grounds to dismiss for immoral conduct or unfitness to serve be constitutionally applied. (*Board of Trustees v. Judge* (1975) 50 Cal. App. 3d 920, 929.)

PERSISTENT VIOLATION OF OR REFUSAL TO OBEY LAWS

27. The word "persistent" is defined by lexicographers as "refusing to relent; continuing, especially in the face of opposition . . . stubborn; persevering . . . constantly repeated." (*Governing Board of the Oakdale Union School District v. Seaman* (1972) 28 Cal.App.3d 77, 82.) Education Code section 44932, subdivision (7) pertains to unintentional as well as intentional transgressions, and hence the Legislature has decreed that a single violation is not sufficient to warrant dismissal, apparently to allow for correction; "it is the persistent disregard" of school rules that the subdivision is designed to regulate. (*Id.* at p.84.)

Evaluation of Witness Testimony

28. To assess the credibility of respondent and the district's witnesses, the Commission considered the factors set forth in Evidence Code section 780 which states that when "determining the credibility of a witness" the trier of fact may consider "any matter that has any tendency in reason to prove or disprove the truthfulness of his

testimony at the hearing," including "the extent of his capacity to perceive, to recollect, or to communicate any matter about which he testifies," "the extent of his opportunity to perceive any matter about which he testifies," "[t]he existence or nonexistence of a bias, interest, or other motive," previous statements the witness has made that are "consistent with his testimony at the hearing," and previous statements the witness has made that are "inconsistent with any part of his testimony at the hearing." The trier of fact may "accept part of the testimony of a witness and reject another part even though the latter contradicts the part accepted." (*Stevens v. Parke Davis & Co.* (1973) 9 Cal.3d 51, 67.) The trier of fact may also "reject part of the testimony of a witness, though not directly contradicted, and combine the accepted portions with bits of testimony or inferences from the testimony of other witnesses thus weaving a cloth of truth out of selected available material." (*Id.*, at 67-68, quoting from *Neverov v. Caldwell* (1958) 161 Cal.App.2d 762, 777.)

29. After applying these factors to the witnesses in this matter, the Commission makes the following credibility findings:

30. The letters and other responses respondent provided to the district during the past several years were sincere and genuine. Respondent worked for the district for more than 24 years and evidence presented indicated that he is dedicated to making a difference in the lives of his students. He was genuinely surprised when he first viewed statements by GW and EM, as he believed he had a great relationship with both of these girls. Several witnesses indicated he was strict and expected a lot of his students. While this upset some students, the letters and notes he provided indicate that other students thanked him for his approach and spoke of the impact he had on their lives. Dr. Chavez believed respondent was not being truthful when he stated that he did not recall the incident where he backed into GW. When the incident occurred,

respondent immediately told GW that he was sorry and gave her a side hug. She reported nothing to staff, or even to her mother about the incident. No other student made a report. Respondent's statement that he did not recall the incident is understandable given that this was an accident, it happened quickly and appeared to have been forgotten until he was notified of Ms. R's complaint several months later. Respondent was found credible and his testimony was persuasive.

31. Regardless of the exact date of the incident, GW made no report, not even to her mother. In mid-February 2023, at the parent conference, she told her mother that respondent backed into her, it was an accident and he had apologized, thereby correcting her mother's account of what occurred. Ms. R filed a complaint, stating that the incident was intentional, and within weeks, GW's story changed and she stated that she had originally thought the incident was an accident but after discussing this with her mother, she decided that perhaps it was intentional. GW's story was inconsistent and she was found not to be credible.

32. EM said respondent was always bricked up and this "was all around school." In October 2022, she prepared a written statement that respondent was bricked up in class, but two months later when she was interviewed by Ms. Graver, she said nothing about respondent being bricked up. EM said that when students were outside on the blacktop, respondent would stare at the girls. He was wearing sunglasses. She acknowledged that she did not know what body part he was staring at "because I wasn't watching exactly." EM said respondent made the comment about "being pretty" to girls and did not make similar comments to boys. At hearing, she testified that she could not say for certain that he did not make similar remarks to male students. EM did not observe the incident where respondent backed into GW, but she said that after the incident, GW's sister was screaming and GW was crying.

When she was asked again, EM acknowledged that GW's sister "was not screaming but she talked about it," and EM said, "I don't know if GW was actually crying, because I didn't see her until the next day." EM's responses and testimony were inconsistent and she was overall not credible.

33. AM said respondent stared at the girls when they were outside doing squats and pushups. She then said she did not know if he was actually staring at the girls because he was wearing sunglasses and she could not see his eyes. AM testified that she saw respondent bricked up one time when she was in the eighth grade. She said respondent wore shorts and T-shirts to class. When she was asked if she could say anything more specific about the shorts respondent wore, she responded, "Why would I be looking at them?" AM was found not to be credible.

34. Regarding her relationship with Ms. R, Ms. Carr described them as "friendly acquaintances, and said they keep in touch. Ms. Carr attended at least two board meetings where Ms. R and her daughters opposed Ms. Muhammad's dismissal. Ms. Carr was present "because I was pissed that Tamara (Muhammad) was being dismissed." Speakers at the meeting believed Dr. Chavez and Dr. Ruiz were protecting respondent. Both GW and her sister spent their lunch time in Ms. Carr's classroom and Ms. R told Ms. Carr about the incident with respondent. Ms. Carr testified that she observed a bulge when she saw respondent briefly on a daily basis, and this occurred more than five but less than 50 times over a two-year period. There was no evidence that she reported this to the school or district at any time prior to the investigation in this matter. Ms. Carr was found not to be credible.

35. Overall, Dr. Chavez's testimony was credible. However, it is concerning that after he conducted his investigation and notified respondent that he could return to work, suddenly everything changed and Dr. Chavez told respondent that he would

be remain on administrative leave. It appears that Dr. Chavez's decision was not based solely on the findings in that investigation.

36. Mr. Hernandez credibly testified as to what is required of a PE teacher and explained why a PE teacher would say "nice form" or why PE teachers watch their students which some may perceive as staring. Ms. Patenaube's testimony of what is required of a PE teacher was consistent with that of Mr. Hernandez. Ms. Patenaube confirmed that she made the statement to respondent about "dick shorts" but explained the context of her statement, which was credible.

37. Ms. Vinson's testimony was disturbing. She acknowledged that Ms. Washburn had done a thorough investigation but she ultimately discounted Ms. Washburn's findings and insisted that respondent be dismissed. Her statement that she was concerned about the environment that had been created for her students was sincere, however, that is assuming that all allegations were in fact true. Ms. Vinson downplayed any role that the community and campus turmoil may have played in this matter, and she insisted that neither Ms. R nor Ms. R's presence and comments at the board meetings had any effect on her decision. Ms. Vinson compared the rumors that were circulating around both campuses to the "sharing of information" between students, thereby failing to consider the effect that these rumors had on students' perceptions before they ever met respondent.

Evaluation of Charges and Disposition

IMMORAL CONDUCT EVALUATION

38. Cause does not exist pursuant to Education Code section 44932, subdivision (a)(1), to dismiss respondent based on immoral conduct. The district did not prove by a preponderance of the evidence that respondent's conduct constituted

immoral conduct or that he engaged in egregious misconduct, within the meaning of Education Code section 44932, subdivision (a)(1).

39. The district did not establish that respondent's conduct constituted immoral conduct. The evidence on this record established that respondent taught for the district for more than 24 years, all reviews except one reflected that he met standards, he received awards, including teacher of the year for a school and for the district, started an afterschool program that lasted for many years, and received many "thank-you" letters from current and former students. Respondent provided copies of many of those letters and testimony from several colleagues, including Mr. Hernandez, Ms. Patenaude, Mr. Campbell, and Ms. Roache, as to his character and dedication to his students. They corroborated respondent's testimony that during the time they have worked together, respondent has not acted in any manner that would be considered immoral conduct. These allegations were unsubstantiated and some students asserting such claims, including GW, were found to not be credible.

40. Concerning respondent's comment to students, "Nice form ladies," respondent, Mr. Hernandez and Ms. Patenaude credibly explained respondent's, and their own, use of this phrase and they refuted the assertion that it had a sexual or prurient meaning. They confirmed the phrase "nice form" is used for male and female students. They credibly testified that properly doing their jobs as PE teachers required that they observe students' form while doing physical activities, including lifting weights or doing stretches or running.

41. Respondent credibly explained the context behind his comment regarding girls being pretty.

42. Ms. Patenaude and respondent credibly testified that the conversation regarding "dick shorts" occurred at least ten years ago, and was a one-time conversation regarding a specific pair of shorts that respondent was wearing. Ms. Patenaude did not "confront" respondent and "dick shorts" were not a problem. Respondent testified, and Ms. Patenaude agreed, that he never wore these shorts again.

43. The assertions that respondent wore shorts that showed the contour of his penis were made by GW, EM, AM, and Ms. Carr. Ms. Carr testified that she consistently observed a bulge. Ms. Patenaude stated that she understood why some students may mention this because they sit on the ground at "crotch level." This did not demonstrate that respondent's conduct as a teacher was immoral at any time. In fact, his supporting witnesses credibly testified to respondent's excellent conduct as a teacher, colleague, and friend.

UNPROFESSIONAL CONDUCT EVALUATION

44. Cause does not exist pursuant to Education Code section 449932, subdivision (a)(2), to dismiss respondent for unprofessional conduct. The district did not prove by a preponderance of the evidence that respondent's conduct was unprofessional for the reasons stated above.

EVIDENT UNFITNESS FOR SERVICE EVALUATION

45. Cause does not exist pursuant to Education Code section 44932, subdivision (a)(6), to dismiss respondent based on evident unfitness for service. Complainant did not establish by a preponderance of evidence that respondent was evidently unfit for service. Respondent has been teaching for more than 24 years. He is well liked by students and fellow teachers. He has been named teacher of the year for

his school and district. He is strict and demands a lot of his students but cares about them as individuals.

PERSISTENT VIOLATION OR REFUSAL TO OBEY EVALUATION

46. Cause does not exist pursuant to Section 44932, subdivision (a)(8), to dismiss respondent because complainant did not prove by a preponderance of evidence that respondent persistently violated or refused to obey school laws or regulations. When respondent was given a directive, he did what was asked of him. Rumors proceeded him and were rampant at LVMA and LGAM, and in social media. The allegations against respondent were not established.

EDUCATION CODE SECTION 44939

47. Cause does not exist pursuant to Education Code section 44939 to dismiss respondent as complainant did not establish respondent engaged in immoral conduct for the reasons stated above.

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ORDER

The Statement of Charges issued against respondent, Kevin Keefe, is dismissed. Respondent's appeal from the district's decision to suspend him without pay and dismiss him from employment with the district is granted. Respondent's appeal from the district's decision to suspend him without pay pending his dismissal is granted. The district's decision to suspend respondent without pay pending his dismissal is reversed. The district shall reimburse respondent back pay, benefits, and interest from the time he was suspended without pay until the date of this decision.

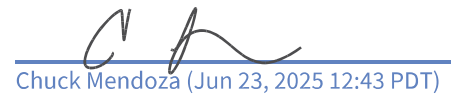
DATE: 06/23/2025



MEGHAN WETHERS

Commission Member

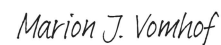
DATE: 06/23/2025


Chuck Mendoza (Jun 23, 2025 12:43 PDT)

CHARLES MENDOZA

Commission Member

DATE: 06/23/2025



MARION J. VOMHOF

Administrative Law Judge

Office of Administrative Hearings